



Article: 55

Warrant Article Title:

ZONING BYLAW AMENDMENT / ADMINISTRATIVE
CLARIFICATION TO BONUS PROVISIONS FOR MULTI-FAMILY
DEVELOPMENT

Warrant Article Text:

To see if the Town will vote to amend Section 5.8.4.E(2) Bonuses of the Zoning Bylaw, to clarify language specific to the calculation of the number of affordable units that must be constructed in order to qualify for the 1-floor and 2-floor bonus provisions of this section in either of the MBMF overlay districts.

Requested By:

Aram Hollman and ten registered voters

Report Excerpt:

That No Action be taken (5-0).

Article 55 proposes to clarify how the number of affordable units needed to qualify for additional floor bonuses in the MBMF Housing Overlay District is calculated, by amending Section 5.8.4.E.(2) of the Zoning Bylaw to add the following: *"In determining the total number of affordable units required, calculation of a fractional unit shall be rounded up to the next whole number, to ensure that at least 22.5% of all units are affordable."* This proposal seeks to clarify language in section 5.8.4.E.(2) that states, in part: *"In the MBMF Overlay District, one additional story may be added if the total percentage of affordable units exceeds the requirements in Section 8.2.3 Requirements of this Bylaw for a total of at least 22.5% of all units."*

Currently, Section 8.2.3.A., Affordable Housing Requirements, states, in part: *“In determining the total number of affordable units required, calculation of a fractional unit of 0.5 or more shall be rounded up to the next whole number.”* The Board interprets this to mean that calculation of a fractional unit of 0.5 or less shall be rounded down to the next whole number. Several Board members expressed concern about introducing a different method of rounding or calculating affordable units than the existing standard in the Zoning Bylaw under Section 8.2.3.A.

The Board generally agreed that the Zoning Bylaw has an existing standard for converting percentages into whole units, and it is preferable to have a single uniform standard throughout the Bylaw rather than different standards in different places. The Board also agreed that maintaining a single, consistent method of calculation of affordable units throughout the Bylaw is preferable to avoid confusion.

Vote Language:

That no action be taken on Article 55.

[Redevelopment Board Report](#)